

JDF 416



Guide to Sealing Arrest Records

(No Charges Filed)

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Step-by-Step

① Qualifications



To qualify to have your arrest records sealed under this process:

- No charges were filed in court.

And (*one of the following three*)

- You completed a diversion agreement.
- Or
- The statute of limitations has expired for all those offenses. Or,
- You are no longer being investigated for those offenses.

- JDF 418 Order (*just do §§ A-C*)
- JDF 419 Notice (*Just do §§ A-C*)
- JDF 435 Order (*just do §§ A-C*)

Pay or waive the filing fee (*if any*).

④ Send a Copy



Mail a copy of your forms to each of the agencies you listed in your request (Form JDF 417).

⑤ Hearing



The Court may hold a hearing.

Be prepared to show why you qualify to have your case sealed.

② Get Records Info



Collect the case report numbers, case numbers, and arrest numbers from the original arrest or criminal records. Get the mailing address for every agency with your records.

⑥ Sealing Records



If the Court approves your request to seal the records:

- The Court will send the order to the agency addresses you listed in the Request.
- The agencies generally seal your records within 30 days of receiving the order.

③ File the Request



File these forms into your criminal case or start a new case in the District Court:

- JDF 417 Request

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- Be sure to list all agency addresses you found in Step 2.

More Information

Generic Information

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This guide only has basic information. Consult a lawyer and review the law to see what applies to your case.

My Notes

- §§ means “sections”
- C.R.S. means Colorado Revised Statutes

Find Forms

Forms can be found on the Court’s website:

[\[www.ColoradoJudicial.gov\]](http://www.ColoradoJudicial.gov)

Filing Fees

The Clerk will let you know the fee (if any) when filing.

If you cannot afford the fee, also file:

- JDF 205 Motion to Waive Fees
- JDF 206 Order (Just do §§ A-C)

Find Records Information

Court Records: The clerk of the court’s office for each respective court can provide county and district court files.

Arrest Records: Contact the arresting agency. Their files have the arresting agency and arrest numbers.

Criminal History: This report may help you find correct dates, arrest numbers, and agency case numbers, [\[www.cbirecordscheck.com\]](http://www.cbirecordscheck.com).

Phone: 303-239-4208

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Address: 690 Kipling Street,
Suite 315,
Lakewood, CO
80215.